LEASE AMENDMENT

Driftwood Town Center | San Diego, CA

Landlord	Driftwood Town Center Owner LLC
Tenant	Lighthouse Pizza Kitchen
Premises	Suite 16160, Driftwood Town Center
Amendment Date	July 11, 2023
Amendment No.	22

1. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

2. Term. The term of this Lease shall be 11 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

5. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 22 months of Base Rent, to be held without interest. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

7. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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8. Alterations. Tenant shall not make any alterations costing more than $232,000 without Landlord's prior written consent, which shall not be unreasonably withheld. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

9. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

10. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

12. Renewal Option. Tenant shall have 22 option(s) to renew for 3 years each at the then-prevailing market rent upon at least nine months' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

13. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

14. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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15. Term. The term of this Lease shall be 3 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

16. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

17. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 13 months of Base Rent, to be held without interest. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

20. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

21. Alterations. Tenant shall not make any alterations costing more than $281,000 without Landlord's prior written consent, which shall not be unreasonably withheld. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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22. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

23. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

24. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

25. Renewal Option. Tenant shall have 31 option(s) to renew for 7 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

26. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

28. Term. The term of this Lease shall be 11 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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29. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

30. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

31. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 23 months of Base Rent, to be held without interest. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

32. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

33. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

34. Alterations. Tenant shall not make any alterations costing more than $48,000 without Landlord's prior written consent, which shall not be unreasonably withheld. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

35. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

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36. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

37. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

38. Renewal Option. Tenant shall have 15 option(s) to renew for 8 years each at the then-prevailing market rent upon at least nine months' notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

40. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

41. Term. The term of this Lease shall be 3 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

42. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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43. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

44. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 43 months of Base Rent, to be held without interest. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

45. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

46. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

47. Alterations. Tenant shall not make any alterations costing more than $11,000 without Landlord's prior written consent, which shall not be unreasonably withheld. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

48. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

49. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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50. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

51. Renewal Option. Tenant shall have 39 option(s) to renew for 9 years each at the then-prevailing market rent upon at least nine months' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

52. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

53. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

54. Term. The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

55. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

56. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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57. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 27 months of Base Rent, to be held without interest. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

58. Use. The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

59. Maintenance and Repairs. Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

60. Alterations. Tenant shall not make any alterations costing more than $99,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

61. Insurance and Indemnity. Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

62. Assignment and Subletting. Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

63. Default and Remedies. If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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64. Renewal Option. Tenant shall have 12 option(s) to renew for 8 years each at the then-prevailing market rent upon at least nine months' notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

65. Subordination and Estoppel. This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

66. Premises. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

67. Term. The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

68. Base Rent. Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

69. Additional Rent and Operating Expenses. Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

70. Security Deposit. Upon execution, Tenant shall deposit with Landlord a security deposit equal to 7 months of Base Rent, to be held without interest. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Driftwood Town Center Owner LLC

By: Natalie Xu Title: Manager Date: 07/11/2023

_____

Lighthouse Pizza Kitchen

By: Olivia Alvarez Title: Authorized Signatory Date: 07/11/2023

Exhibit A - Property

Driftwood Town Center, 3892 Peachtree Court, San Diego, CA 51055. Parcel containing approximately 7.29 acres, together with all improvements thereon.

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